

THE PUNJAB AGRICULTURAL INCOME TAX ACT, 1997
(I of 1997)

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¹THE PUNJAB AGRICULTURAL INCOME TAX ACT 1997
(I of 1997)

[16th June, 1997]

**An
Act**

to provide for the imposition of a tax on agricultural income in the Punjab.

Preamble.— Whereas the Constitution of the Islamic Republic of Pakistan envisages the creation of an egalitarian society based on the Islamic principles of social justice;

And Whereas for achieving the object it is expedient to provide for the imposition of a tax on agricultural income in the Punjab;

It is hereby enacted as follows:—

1. Short title, extent and commencement.— (1) This Act may be called the Punjab Agricultural Income Tax Act 1997.

²[(2) It shall come into force on the first day of July 1997.]

2. Definitions.— (1) In this Act, unless there is anything repugnant in the subject or context—

³[(a) “agricultural income” means—

- (a) any rent or revenue derived from land which is situated in the Punjab and is used for agricultural purposes;
- (b) any income derived from such land by—
 - (i) agriculture; or
 - (ii) the performance by a cultivator or receiver of rent-in-kind⁴[of] any process ordinarily employed by a cultivator or receiver of rent-in-kind to render the produce raised or received by him fit to be taken to market; or
 - (iii) the sale by a cultivator or receiver of rent-in-kind of the produce raised or received by him, in respect of which no

¹This Act was passed by the Punjab Assembly on 13th June, 1997; assented to by the Governor of the Punjab on 14th June, 1997; and, was published in the Punjab Gazette (Extraordinary), dated 16th June, 1997, pages 841- 844.

²Substituted by the Punjab Agricultural Income Tax (Amendment) Act 1998 (V of 1998), w.e.f. 8.5.1998, s.2; and published in the Punjab Gazette (Extraordinary), pages 777-778.

³Added by the Punjab Agricultural Income Tax (Amendment) Ordinance, 2000 (I of 2000), w.e.f. 1.7.2000, s.2; and published in the Punjab Gazette (Extraordinary), dated 30.6.2000, pages 577-581, which was protected and continued under the Provisional Constitutional Order, 1999 (Chief Executive's Order 1 of 1999) as amended by the Provisional Constitution (Amendment) Order, 1999 (Chief Executive's Order 9 of 1999) and Article 270AA of the Constitution of the Islamic Republic of Pakistan as substituted by the Constitution (Eighteenth Amendment) Act, 2010.

⁴Substituted for the word “or” by the Punjab Agricultural Income Tax (Second Amendment) Ordinance, 2001 (VIII of 2001), w.e.f. 1.7.2000, s.2; and published in the Punjab Gazette (Extraordinary), dated 4.7.2001, pages 1161-1168, which was protected and continued under the Provisional Constitutional Order, 1999 (Chief Executive's Order 1 of 1999) as amended by the Provisional Constitution (Amendment) Order, 1999 (Chief Executive's Order 9 of 1999) and Article 270AA of the Constitution of the Islamic Republic of Pakistan as substituted by the Constitution (Eighteenth Amendment) Act, 2010.

process has been performed other than a process of the nature ⁵[described] in paragraph (ii);

- (c) any income derived from any building owned and occupied by the receiver of the rent or revenue of any such land, or occupied by the cultivator or the receiver of rent-in-kind, of any land with respect to which, or the produce of which, any operation mentioned in paragraphs (ii) and (iii) of sub-clause (b) is carried on:

Provided that the building is on, or in the immediate vicinity of the land, and is a building which the receiver of the rent or revenue or the cultivator, or the receiver of the rent-in-kind by reason of his connection with the land, requires as a dwelling-house, or a store-house, or other out-building;]

⁶⁷[* * * * *]

⁸⁹[* * * * *]

- (ab) “assessment” includes reassessment and additional assessment and the cognate expressions shall be construed accordingly;

¹⁰[* * * * *]

- ¹¹[(ad)] “Collector” means Collector of a district appointed under the Punjab Land Revenue Act 1967 (XVII of 1967) and includes ¹²[* *]
¹³ ¹⁴[* * *] any officer specially appointed by the Government to

⁵Substituted for the word “specified” by the Punjab Agricultural Income Tax (Second Amendment) Ordinance, 2001 (VIII of 2001), w.e.f. 1.7.2000, s.2; and published in the Punjab Gazette (Extraordinary), dated 4.7.2001, pages 1161-1168, which was protected and continued under the Provisional Constitutional Order, 1999 (Chief Executive’s Order 1 of 1999) as amended by the Provisional Constitution (Amendment) Order, 1999 (Chief Executive’s Order 9 of 1999) and Article 270AA of the Constitution of the Islamic Republic of Pakistan as substituted by the Constitution (Eighteenth Amendment) Act, 2010.

⁶Inserted by the Punjab Agricultural Income Tax (Amendment) Act 2024 (XV of 2024), published in the Punjab Gazette (Extraordinary), dated: 27 November 2024, pp. 1469-1472, s. 2(a).

⁷Omitted “clause (e)” by the Punjab Agricultural Income Tax (Amendment) Act 2025 (LXVII of 2025), published in the Punjab Gazette (Extraordinary), dated: 05 August 2025, p.653, s. 2.

⁸Inserted by the Punjab Agricultural Income Tax (Second Amendment) Ordinance, 2001 (VIII of 2001), w.e.f. 1.7.2000, s.2; and published in the Punjab Gazette (Extraordinary), dated 4.7.2001, pages 1161-1168, which was protected and continued under the Provisional Constitutional Order, 1999 (Chief Executive’s Order 1 of 1999) as amended by the Provisional Constitution (Amendment) Order, 1999 (Chief Executive’s Order 9 of 1999) and Article 270AA of the Constitution of the Islamic Republic of Pakistan as substituted by the Constitution (Eighteenth Amendment) Act, 2010.

⁹Omitted by the Punjab Agricultural Income Tax (Amendment) Act 2024 (XV of 2024), published in the Punjab Gazette (Extraordinary), dated: 27 November 2024, pp. 1469-1472, s. 2(g).

¹⁰Omitted by the Act *ibid*.

¹¹Re-lettered by the Punjab Agricultural Income Tax (Second Amendment) Ordinance, 2001 (VIII of 2001), w.e.f. 1.7.2000, s.2; and published in the Punjab Gazette (Extraordinary), dated 4.7.2001, pages 1161-1168, which was protected and continued under the Provisional Constitutional Order, 1999 (Chief Executive’s Order 1 of 1999) as amended by the Provisional Constitution (Amendment) Order, 1999 (Chief Executive’s Order 9 of 1999) and Article 270AA of the Constitution of the Islamic Republic of Pakistan as substituted by the Constitution (Eighteenth Amendment) Act, 2010.

¹²Omitted the words and brackets “a Deputy District Officer (Revenue) and” by the Punjab Laws (Amendment) Act 2011 (VI of 2011), w.e.f. 20.4.2011 (notification published in the Punjab Gazette (Extraordinary), dated 16.4.2011, page 4081), s.16; and published in the Punjab Gazette (Extraordinary), dated 14.4.2011, pages 4043-4047, which earlier substituted for the words “an Assistant Commission of a Sub Division” by the Punjab Agricultural income Tax (Amendment) Ordinance, 2001 (XLIX of 2001), w.e.f. 14.8.2001, s.2; and published in the Punjab Gazette (Extraordinary), dated 29.11.2001, pages 1861-1862.

¹³Added by the Punjab Agricultural income Tax (Amendment) Ordinance, 2001 (XLIX of 2001), w.e.f. 14.8.2001, s.2; and published in the Punjab Gazette (Extraordinary), dated 29.11.2001, pages 1861-1862.

¹⁴Omitted the words and brackets “a Deputy District Officer (Revenue) and” by the Punjab Laws (Amendment) Act 2011 (VI of 2011), w.e.f. 20.4.2011 (notification published in the Punjab Gazette (Extraordinary), dated 16.4.2011, page 4081), s.16; and published in the Punjab Gazette (Extraordinary), dated 14.4.2011, pages 4043-4047.

perform the functions and exercise the powers of a Collector under this Act];

- ¹⁵[(ae) “company” means a company and its cognate expressions as defined in the Companies Act, 2017 (XIX of 2017), a firm or body corporate formed by or under any law in force in Pakistan, a modaraba, a trust, a body incorporated by or under the law of a country outside Pakistan relating to incorporation of companies, a co-operative society, a finance society or any other society;]
- (b) “cultivated land” means any area of land which was sown at least once during the tax year, including land under matured orchard which bore fruit during the tax year, but excluding land under planted forest or forest nursery;
- (c) ¹⁶“[mature] orchard” means orchard of the age of seven years or more in the case of mango orchard and of the age of five years or more in the case of other orchards;
- (d) “Government” means the Government of the Punjab;
- ¹⁷[¹⁸ * * * * * * * * * * * *]]
- ¹⁹[²⁰[(e) “livestock” means cattle, buffalo, sheep, goat, camel, horse and other useful animals kept or raised for income generation;]]
- (f) “owner” includes a member of a joint hindu family whether owning land individually or jointly with any other person and includes mortgagee in possession, or tenant of Government land;
- ²¹[(fa) “person” means an individual or a company;]

Explanation 1.— Where any land is owned by more than one person whether as member of a firm or association or otherwise, every one of those persons individually, to the extent of his share in the said land, shall be deemed to be an owner.

¹⁵Inserted by the Punjab Agricultural Income Tax (Amendment) Act 2024 (XV of 2024), published in the Punjab Gazette (Extraordinary), dated: 27 November 2024, pp. 1469-1472, s. 2(b).

¹⁶Substituted for the word “matured” by the Punjab Agricultural Income Tax (Amendment) Ordinance, 2002 (XXXVIII of 2002), w.e.f.1.7.2002, s.2; and published in the Punjab Gazette (Extraordinary), dated 8.7.2002, pages...., which was protected and continued under the Provisional Constitutional Order, 1999 (Chief Executive’s Order 1 of 1999) as amended by the Provisional Constitution (Amendment) Order, 1999 (Chief Executive’s Order 9 of 1999) and Article 270AA of the Constitution of the Islamic Republic of Pakistan as substituted by the Constitution (Eighteenth Amendment) Act, 2010.

¹⁷Inserted by the Punjab Agricultural Income Tax (Second Amendment) Ordinance, 2001 (VIII of 2001), w.e.f. 1.7.2000, s.2; and published in the Punjab Gazette (Extraordinary), dated 4.7.2001, pages 1161-1168, which was protected and continued under the Provisional Constitutional Order, 1999 (Chief Executive's Order 1 of 1999) as amended by the Provisional Constitution (Amendment) Order, 1999 (Chief Executive's Order 9 of 1999) and Article 270AA of the Constitution of the Islamic Republic of Pakistan as substituted by the Constitution (Eighteenth Amendment) Act, 2010.

¹⁸Omitted by the Punjab Agricultural Income Tax (Amendment) Act 2024 (XV of 2024), published in the Punjab Gazette (Extraordinary), dated: 27 November 2024, pp. 1469-1472, s. 2(g).

¹⁹Omitted by the Punjab Agricultural Income Tax (Amendment) Ordinance, 2000 (I of 2000), w.e.f. 1.7.2000, s.2; and published in the Punjab Gazette (Extraordinary), dated 30.6.2000, pages 577-581, which was protected and continued under the Provisional Constitutional Order, 1999 (Chief Executive's Order 1 of 1999) as amended by the Provisional Constitution (Amendment) Order, 1999 (Chief Executive's Order 9 of 1999) and Article 270AA of the Constitution of the Islamic Republic of Pakistan as substituted by the Constitution (Eighteenth Amendment) Act, 2010.

²⁰Inserted by the Punjab Agricultural Income Tax (Amendment) Act 2024 (XV of 2024), published in the Punjab Gazette (Extraordinary), dated: 27 November 2024, pp. 1469-1472, s. 2(c).

²¹Inserted by the Punjab Agricultural Income Tax (Amendment) Act 2024 (XV of 2024), published in the Punjab Gazette (Extraordinary), dated: 27 November 2024, pp. 1469-1472, s. 2(d).

Explanation II.— Every ‘ward’ whose estate is managed by a Court of Wards shall be deemed to be the owner of such estate.

²²[**Explanation III.**— A member of a cooperative farming society shall be deemed to be the owner of such portion of the land possessed by the society as is proportionate to his share or interest as a member;]

(g) “prescribed” means prescribed by rules;

²³[(ga) “return” mean the return of total agricultural income in the prescribed form setting forth such particulars and accompanied by such statements, certificates, and other documents, and verified in such manner, as may be prescribed;]

(h) “rules” means rules made under this Act;

²⁴[(ha) “super tax” means the super tax levied under section 3AA of the Act;]

(i) “tax” means tax leviable under the provisions of this Act and includes any penalty leviable under this Act; ²⁵[* * *]

²⁶[(ia) “taxpayer” means a person chargeable to tax under this Act and includes:

(i) a person in respect of whom any proceedings under this Act have been taken for the assessment of his total cultivated land or for the assessment of his agricultural income or the agricultural income of any other person in respect of which he is assessable or of the amount of refund due to him or to such other person;

(ii) a person who is required to file a statement of his total cultivated land or return of total agricultural income under sections 3 and 4 of this Act; and

(iii) a person who is deemed to be a taxpayer, or a taxpayer in default, under this Act;]

(j) “tax year” means agricultural year as defined in the Punjab Land Revenue Act 1967 (XVII of 1967) ²⁷[; and]

²²Substituted by the Punjab Agricultural Income Tax (Second Amendment) Ordinance, 2001 (VIII of 2001), w.e.f. 1.7.2000, s.2; and published in the Punjab Gazette (Extraordinary), dated 4.7.2001, pages 1161-1168, which was protected and continued under the Provisional Constitutional Order, 1999 (Chief Executive's Order 1 of 1999) as amended by the Provisional Constitution (Amendment) Order, 1999 (Chief Executive's Order 9 of 1999) and Article 270AA of the Constitution of the Islamic Republic of Pakistan as substituted by the Constitution (Eighteenth Amendment) Act, 2010.

²³Inserted by the Punjab Agricultural Income Tax (Second Amendment) Ordinance, 2001 (VIII of 2001), w.e.f. 1.7.2000, s.2; and published in the Punjab Gazette (Extraordinary), dated 4.7.2001, pages 1161-1168, which was protected and continued under the Provisional Constitutional Order, 1999 (Chief Executive's Order 1 of 1999) as amended by the Provisional Constitution (Amendment) Order, 1999 (Chief Executive's Order 9 of 1999) and Article 270AA of the Constitution of the Islamic Republic of Pakistan as substituted by the Constitution (Eighteenth Amendment) Act, 2010.

²⁴Inserted by the Punjab Agricultural Income Tax (Amendment) Act 2024 (XV of 2024), published in the Punjab Gazette (Extraordinary), dated: 27 November 2024, pp. 1469-1472, s. 2(e).

²⁵Omitted the word “and” by the Punjab Agricultural Income Tax (Second Amendment) Ordinance, 2001 (VIII of 2001), w.e.f. 1.7.2000, s.2; and published in the Punjab Gazette (Extraordinary), dated 4.7.2001, pages 1161-1168, which was protected and continued under the Provisional Constitutional Order, 1999 (Chief Executive's Order 1 of 1999) as amended by the Provisional Constitution (Amendment) Order, 1999 (Chief Executive's Order 9 of 1999) and Article 270AA of the Constitution of the Islamic Republic of Pakistan as substituted by the Constitution (Eighteenth Amendment) Act, 2010.

²⁶Inserted by the Punjab Agricultural Income Tax (Amendment) Act 2024 (XV of 2024), published in the Punjab Gazette (Extraordinary), dated: 27 November 2024, pp. 1469-1472, s. 2(f).

²⁸[(k) “total agricultural income” means the total amount of agricultural income, computed in the manner laid down in this Act.]

(2) All words and expressions in this Act used or defined in the Punjab Land Revenue Act 1967 (XVII of 1967) and not hereinbefore defined shall be deemed to have meanings respectively attributed to them by that Act.

²⁹[3. **Charge of agricultural income-tax.**— (1) Subject to the other provisions of this Act, there shall be levied, assessed and collected each year a tax in respect of agricultural income of a tax year of an owner at the rate ³⁰[as may be prescribed.]

Explanation.— For the purposes of this sub-section, the cultivated land during a tax year shall be deemed to be agricultural income.

³¹[(2) * * * * *]

³²[(3) Subject to the other provisions of this Act, there shall be levied, assessed and collected for each ³³[tax year] commencing on or after the first day of July, 2001, agricultural income tax in respect of the total agricultural income of the ³⁴[tax year] of every person ³⁵[* * *] at the rate ³⁶[as may be prescribed:]

²⁷Substituted for the “full-stop” by the Punjab Agricultural Income Tax (Second Amendment) Ordinance, 2001 (VIII of 2001), w.e.f. 1.7.2000, s.2; and published in the Punjab Gazette (Extraordinary), dated 4.7.2001, pages 1161-1168, which was protected and continued under the Provisional Constitutional Order, 1999 (Chief Executive’s Order 1 of 1999) as amended by the Provisional Constitution (Amendment) Order, 1999 (Chief Executive’s Order 9 of 1999) and Article 270AA of the Constitution of the Islamic Republic of Pakistan as substituted by the Constitution (Eighteenth Amendment) Act, 2010.

²⁸Added by the Punjab Agricultural Income Tax (Second Amendment) Ordinance, 2001 (VIII of 2001), w.e.f. 1.7.2000, s.2; and published in the Punjab Gazette (Extraordinary), dated 4.7.2001, pages 1161-1168, which was protected and continued under the Provisional Constitutional Order, 1999 (Chief Executive’s Order 1 of 1999) as amended by the Provisional Constitution (Amendment) Order, 1999 (Chief Executive’s Order 9 of 1999) and Article 270AA of the Constitution of the Islamic Republic of Pakistan as substituted by the Constitution (Eighteenth Amendment) Act, 2010.

²⁹Substituted by the Punjab Agricultural Income Tax (Amendment) Ordinance, 2000 (I of 2000), w.e.f. 1.7.2000, s.3; and published in the Punjab Gazette (Extraordinary), dated 30.6.2000, pages 577-581, which was protected and continued under the Provisional Constitutional Order, 1999 (Chief Executive’s Order 1 of 1999) as amended by the Provisional Constitution (Amendment) Order, 1999 (Chief Executive’s Order 9 of 1999) and Article 270AA of the Constitution of the Islamic Republic of Pakistan as substituted by the Constitution (Eighteenth Amendment) Act, 2010, which earlier was substituted by the Punjab Agricultural Income Tax (Amendment) Act 1998 (V of 1998), w.e.f. 8.5.1998, s.2; and published in the Punjab Gazette (Extraordinary), pages 777-778.

³⁰Substituted for the words “specified in the First Schedule to this Act” by the Punjab Agricultural Income Tax (Amendment) Act 2024 (XV of 2024), published in the Punjab Gazette (Extraordinary), dated: 27 November 2024, pp. 1469-1472, s. 3(a).

³¹Omitted by the Punjab Agricultural Income Tax (Amendment) Ordinance, 2002 (XXXVIII of 2002), w.e.f. 1.7.2002, s.3; and published in the Punjab Gazette (Extraordinary), dated 8.7.2002, pages....which was protected and continued under the Provisional Constitutional Order, 1999 (Chief Executive’s Order 1 of 1999) as amended by the Provisional Constitution (Amendment) Order, 1999 (Chief Executive’s Order 9 of 1999) and Article 270AA of the Constitution of the Islamic Republic of Pakistan as substituted by the Constitution (Eighteenth Amendment) Act, 2010.

³²Substituted by the Punjab Agricultural Income Tax (Second Amendment) Ordinance, 2001 (VIII of 2001), w.e.f. 1.7.2000, s.3; and published in the Punjab Gazette (Extraordinary), dated 4.7.2001, pages 1161-1168, which was protected and continued under the Provisional Constitutional Order, 1999 (Chief Executive’s Order 1 of 1999) as amended by the Provisional Constitution (Amendment) Order, 1999 (Chief Executive’s Order 9 of 1999) and Article 270AA of the Constitution of the Islamic Republic of Pakistan as substituted by the Constitution (Eighteenth Amendment) Act, 2010.

³³Substituted for the words “assessment year” by the Punjab Agricultural Income Tax (Amendment) Act 2024 (XV of 2024), published in the Punjab Gazette (Extraordinary), dated: 27 November 2024, pp. 1469-1472, s. 13.

³⁴Substituted for the words “income year” by the Act *ibid*.

³⁵Omitted the words, brackets, figure and comma “who is required to file a return of his total agricultural income under sub-section (2),” by the Punjab Agricultural Income Tax (Amendment) Ordinance, 2002 (XXXVIII of 2002), w.e.f. 1.7.2002, s.2; and published in the Punjab Gazette (Extraordinary), dated 8.7.2002, pages....which was protected and continued under the Provisional Constitutional Order, 1999 (Chief Executive’s Order 1 of 1999) as amended by the Provisional Constitution (Amendment) Order, 1999 (Chief Executive’s Order 9 of 1999) and Article 270AA of the Constitution of the Islamic Republic of Pakistan as substituted by the Constitution (Eighteenth Amendment) Act, 2010.

³⁶Substituted for the words “specified in the Second Schedule” by the Punjab Agricultural Income Tax (Amendment) Act 2024 (XV of 2024), published in the Punjab Gazette (Extraordinary), dated: 27 November 2024, pp. 1469-1472, s. 3(b).

Provided that where, by virtue of an amendment in the ³⁷[rules], the rate of income tax, for the purpose of assessment in respect of any ³⁸[tax year], is altered, the rate of income tax existing prior to the said alteration shall continue to apply in respect of any ³⁹[tax year] to which the said existing rate is applicable.]

⁴⁰[(4) Out of the two taxes assessed under sub-sections (1) and (3), ⁴¹[taxpayer] shall be liable to pay one tax the amount of which shall be greater.]

⁴²**[3-A. Effect of transfers made on or after the first day of July 2003.—** Any person liable to pay tax under this Act, transferring his land or interest therein on or after the first day of July 2003 in favour of his wife or any of his heirs under the age of eighteen years, shall continue to be liable for payment of the tax as if such transfer had not taken place:

Provided that this liability of the person for payment of the tax in respect of the land or interest therein transferred to any of his heirs under the age of eighteen years, shall cease when the heir attains the age of eighteen years.

Explanation.— For the purpose of determining whether or not a transferee is an heir within the meaning of this section, succession to the property of the owner shall be deemed to have opened at the time of the transfer.]

⁴³**[3-AA. Super tax on high earning persons.-** A super tax shall be levied, assessed and collected at such rate as may be specified in the Income Tax Ordinance, 2001 for high earning persons.]

⁴⁴**[3B. Tax on the basis of income tax return.—** Notwithstanding the provisions of section 3, where any person has declared agricultural income for any ⁴⁵[tax year] in the return filed under the income Tax Ordinance, 2001 (XLIX of 2001), the person shall pay the tax on such income at the rate ⁴⁶[as may be prescribed].]

³⁷Substituted for the words "Second Schedule" by the Punjab Agricultural Income Tax (Amendment) Act 2024 (XV of 2024), published in the Punjab Gazette (Extraordinary), dated: 27 November 2024, pp. 1469-1472, s. 3(c).

³⁸Substituted for the words "assessment year" by the Punjab Agricultural Income Tax (Amendment) Act 2024 (XV of 2024), published in the Punjab Gazette (Extraordinary), dated: 27 November 2024, pp. 1469-1472, s. 13.

³⁹Substituted for the words "assessment year" by the Act *ibid*.

⁴⁰Added by the Punjab Agricultural Income Tax (Second Amendment) Ordinance, 2001 (VIII of 2001), w.e.f. 1.7.2000, s.3; and published in the Punjab Gazette (Extraordinary), dated 4.7.2001, pages 1161-1168, which was protected and continued under the Provisional Constitutional Order, 1999 (Chief Executive's Order 1 of 1999) as amended by the Provisional Constitution (Amendment) Order, 1999 (Chief Executive's Order 9 of 1999) and Article 270AA of the Constitution of the Islamic Republic of Pakistan as substituted by the Constitution (Eighteenth Amendment) Act, 2010.

⁴¹Substituted for the words "an assessee" by the Punjab Agricultural Income Tax (Amendment) Act 2024 (XV of 2024), published in the Punjab Gazette (Extraordinary), dated: 27 November 2024, pp. 1469-1472, s. 13.

⁴²Added by the Punjab Agricultural Income Tax (Amendment) Act 2003 (VIII of 2003), w.e.f. 1.7.2003, s.2; and published in the Punjab Gazette (Extraordinary), dated 9.6.203, pages 1017-1018.

⁴³Inserted by the Punjab Agricultural Income Tax (Amendment) Act 2024 (XV of 2024), published in the Punjab Gazette (Extraordinary), dated: 27 November 2024, pp. 1469-1472, s. 4.

⁴⁴Inserted by the Punjab Finance Act 2013 (XVI of 2013), w.e.f. 1.7.2013, s.6; and published in the Punjab Gazette (Extraordinary), dated 29.6.2013, pages 3075-3078.

⁴⁵Substituted for the words "assessment year" by the Punjab Agricultural Income Tax (Amendment) Act 2024 (XV of 2024), published in the Punjab Gazette (Extraordinary), dated: 27 November 2024, pp. 1469-1472, s. 13.

⁴⁶Substituted for the words "specified in the Second Schedule" by the Punjab Agricultural Income Tax (Amendment) Act 2024 (XV of 2024), published in the Punjab Gazette (Extraordinary), dated: 27 November 2024, pp. 1469-1472, s. 5.

4. Assessment and collection of tax.— (1) The tax shall be assessed and collected by the Collector in such manner as may be prescribed.

(2) In case of assessment regarding an owner holding land in more than one patwar circle, the owner shall file a statement regarding the location of his land in the Punjab, in such manner as may be prescribed.

⁴⁷[(3) Every person—

(a) whose total agricultural income or the total agricultural income of any other person in respect of which he is assessable under this Act, for any ⁴⁸[tax year] (hereinafter referred to as the said ⁴⁹[tax year]) exceeds the maximum amount which is not chargeable to tax under this Act; ⁵⁰[*]

⁵¹[* * * * *]

shall file a return of his total agricultural income or the agricultural income of such other person, as the case may be, for the said ⁵²[tax year] in such form and by such date as may be prescribed.]

⁵³[(4) No assessment on the basis of return shall be made by the Collector after the expiration of ⁵⁴[four] years from the end of the ⁵⁵[tax year] in which the total agricultural income was first assessable.]

⁵⁶**[4-A. Computation of agricultural income.**— In computing agricultural income of ⁵⁷[taxpayer], the following allowances and deductions shall be made, namely:—

(a) any expenditure on account of labour ⁵⁸[, including labour provided by the adult member of the family,] for—

⁴⁷Substituted by the Punjab Agricultural Income Tax (Amendment) Ordinance, 2002 (XXXVIII of 2002), w.e.f.1.7.2002, s.4; and published in the Punjab Gazette (Extraordinary), dated 8.7.2002, pages.....which was protected and continued under the Provisional Constitutional Order, 1999 (Chief Executive's Order 1 of 1999) as amended by the Provisional Constitution (Amendment) Order, 1999 (Chief Executive's Order 9 of 1999) and Article 270AA of the Constitution of the Islamic Republic of Pakistan as substituted by the Constitution (Eighteenth Amendment) Act, 2010, which earlier added by by the Punjab Agricultural Income Tax (Amendment) Ordinance, 2000 (I of 2000), w.e.f. 1.7.2000, s.4; and published in the Punjab Gazette (Extraordinary), dated 30.6.2000, pages 577-581, which was protected and continued under the Provisional Constitutional Order, 1999 (Chief Executive's Order 1 of 1999) as amended by the Provisional Constitution (Amendment) Order, 1999 (Chief Executive's Order 9 of 1999) and Article 270AA of the Constitution of the Islamic Republic of Pakistan as substituted by the Constitution (Eighteenth Amendment) Act, 2010.

⁴⁸Substituted for the words "income year" by the Punjab Agricultural Income Tax (Amendment) Act 2024 (XV of 2024), published in the Punjab Gazette (Extraordinary), dated: 27 November 2024, pp. 1469-1472, s. 13.

⁴⁹Substituted for the words "income year" by the Act *ibid*.

⁵⁰The word "or" omitted by the Punjab Agricultural Income Tax (Amendment) Act 2024 (XV of 2024), published in the Punjab Gazette (Extraordinary), dated: 27 November 2024, pp. 1469-1472, s. 6(a)(i).

⁵¹Omitted by the Punjab Agricultural Income Tax (Amendment) Act 2024 (XV of 2024), published in the Punjab Gazette (Extraordinary), dated: 27 November 2024, pp. 1469-1472, s. 6(a)(ii).

⁵²Substituted for the words "income year" by the Punjab Agricultural Income Tax (Amendment) Act 2024 (XV of 2024), published in the Punjab Gazette (Extraordinary), dated: 27 November 2024, pp. 1469-1472, s. 13.

⁵³Added by the Punjab Agricultural Income Tax (Second Amendment) Ordinance, 2001 (VIII of 2001), w.e.f. 1.7.2000, s.4; and published in the Punjab Gazette (Extraordinary), dated 4.7.2001, pages 1161-1168, which was protected and continued under the Provisional Constitutional Order, 1999 (Chief Executive's Order 1 of 1999) as amended by the Provisional Constitution (Amendment) Order, 1999 (Chief Executive's Order 9 of 1999) and Article 270AA of the Constitution of the Islamic Republic of Pakistan as substituted by the Constitution (Eighteenth Amendment) Act, 2010.

⁵⁴Substituted for the word "two" by the Punjab Agricultural Income Tax (Amendment) Act 2024 (XV of 2024), published in the Punjab Gazette (Extraordinary), dated: 27 November 2024, pp. 1469-1472, s. 6(b).

⁵⁵Substituted for the words "assessment year" by the Punjab Agricultural Income Tax (Amendment) Act 2024 (XV of 2024), published in the Punjab Gazette (Extraordinary), dated: 27 November 2024, pp. 1469-1472, s. 13.

⁵⁶Inserted by the Punjab Agricultural Income Tax (Second Amendment) Ordinance, 2001 (VIII of 2001), w.e.f. 1.7.2000, s.5; and published in the Punjab Gazette (Extraordinary), dated 4.7.2001, pages 1161-1168, which was protected and continued under the Provisional Constitutional Order, 1999 (Chief Executive's Order 1 of 1999) as amended by the Provisional Constitution (Amendment) Order, 1999 (Chief Executive's Order 9 of 1999) and Article 270AA of the Constitution of the Islamic Republic of Pakistan as substituted by the Constitution (Eighteenth Amendment) Act, 2010.

⁵⁷Substituted for the words "an assessee" by the Punjab Agricultural Income Tax (Amendment) Act 2024 (XV of 2024), published in the Punjab Gazette (Extraordinary), dated: 27 November 2024, pp. 1469-1472, s. 13.

- (i) tilling the land;
 - (ii) sowing the seed;
 - (iii) ploughing/planting;
 - (iv) tending/pruning;
 - (v) rendering the produce fit to be taken to market;
 - (vi) any other agricultural operation;
- (b) any expenditure incurred on purchase of–
 - (i) seed;
 - (ii) fertilizers and pesticides;
- (c) any expenditure incurred on–
 - (i) hiring animals, tractors, agricultural machinery and implements used for earning agricultural income;
 - (ii) repair and maintenance of water-courses;
- (d) any expenditure incurred on–
 - (i) harvesting of agricultural produce;
 - (ii) marketing of the agricultural produce;
- (e) any sum paid on account of–
 - (i) ushr;
 - (ii) local cess and other cesses;
 - (iii) water-rate (Abiana);
 - (iv) electricity bills in respect of tubewells and lift pumps used for agriculture;
 - (v) fuel charges in respect of tubewells and lift pumps uses for agriculture;
 - (vi) rent of land used for agriculture;
 - (vii) obtaining of agricultural loans;
 - (viii) mark-up on agricultural loans;
- (f) in respect of depreciation of such buildings, machinery and plant being the property of the ⁵⁹[taxpayer] used for the purpose of earning agricultural income, allowance at the rate of 15 percent of the written down value; ⁶⁰[*]

⁵⁸Inserted by the Punjab Agricultural Income Tax (Amendment) Act 2024 (XV of 2024), published in the Punjab Gazette (Extraordinary), dated: 27 November 2024, pp. 1469-1472, s. 7(a).

⁵⁹Substituted for the word "assessee" by the Punjab Agricultural Income Tax (Amendment) Act 2024 (XV of 2024), published in the Punjab Gazette (Extraordinary), dated: 27 November 2024, pp. 1469-1472, s. 13.

⁶⁰The word "and" omitted by the Punjab Agricultural Income Tax (Amendment) Act 2024 (XV of 2024), published in the Punjab Gazette (Extraordinary), dated: 27 November 2024, pp. 1469-1472, s. 7(b).

- (g) any other expenditure not being in the nature of capital expenditure or personal expenses of the ⁶¹[taxpayer] laid out or expended wholly and exclusively for the purposes of agriculture ⁶²[; and]

⁶³⁶⁴[[* * * * *]]

⁶⁵**[4-AA. Special procedure for certain categories of tax payers.-** Notwithstanding anything contained in this Act or the rules, the Government may, by notification in the official Gazette, prescribe special procedure for scope and payment of tax, filing of return and assessment in respect of such categories of tax payers, in such areas, as may be specified therein.]

4-B. Allowances to be treated as deduction from income.— Any allowance admissible under this Act shall be included in the total agricultural income, but may be deducted from such income for the purpose of computing the tax payable by ⁶⁶[taxpayer] under this Act.

4-C. Liability in the case of a deceased person.— (1) Where a person dies, his legal representatives shall be liable to pay tax which the deceased would have been liable to pay if he had not died, in the like manner and to the same extent as the deceased.

(2) For the purpose of making an assessment of the agricultural income of the deceased and recovery of tax—

- (a) any proceeding taken against the deceased before his death shall be deemed to have been taken against the legal representatives and may be continued against the legal representatives from the stage at which it stood on the date of the death of the deceased; and
- (b) any proceeding which could have been taken against the deceased if he had survived may be taken against the legal representatives,

and all the provisions of this Act shall, so far as may be, apply accordingly.

(3) The legal representatives of the deceased shall, for the purposes of this Act be deemed to be ⁶⁷[taxpayer].

Explanation.— For the purposes of this section, “legal representative” includes an executor, administrator and any person administering the estate of a deceased person.

⁶¹Substituted for the word “assessee” by the Punjab Agricultural Income Tax (Amendment) Act 2024 (XV of 2024), published in the Punjab Gazette (Extraordinary), dated: 27 November 2024, pp. 1469-1472, s. 13.

⁶²Substituted for the full stop “.” by the Punjab Agricultural Income Tax (Amendment) Act 2024 (XV of 2024), published in the Punjab Gazette (Extraordinary), dated: 27 November 2024, pp. 1469-1472, s. 7(c).

⁶³Inserted by the Punjab Agricultural Income Tax (Amendment) Act 2024 (XV of 2024), published in the Punjab Gazette (Extraordinary), dated: 27 November 2024, pp. 1469-1472, s. 7(d).

⁶⁴Omitted “clause (h)” by the Punjab Agricultural Income Tax (Amendment) Act 2025 (LXVII of 2025), published in the Punjab Gazette (Extraordinary), dated: 05 August 2025, p. 653, s. 3.

⁶⁵Inserted by the Punjab Agricultural Income Tax (Amendment) Act 2024 (XV of 2024), published in the Punjab Gazette (Extraordinary), dated: 27 November 2024, pp. 1469-1472, s. 8.

⁶⁶Substituted for the words “an assessee” by the Punjab Agricultural Income Tax (Amendment) Act 2024 (XV of 2024), published in the Punjab Gazette (Extraordinary), dated: 27 November 2024, pp. 1469-1472, s. 13.

⁶⁷Substituted for the words “an assessee” by the Act *ibid*.

4-D. Liability of agents representing ⁶⁸[taxpayer].— (1) Every agent shall, in respect of the agricultural income for which he is, or is declared to be, or is treated as, an agent, be deemed to be ⁶⁹[taxpayer] for the purposes of this Act and shall be subject to the same obligations and liabilities as if he were the ⁷⁰[taxpayer], and shall be liable to assessment in his own name in respect of that income.

(2) Every agent who pays any tax under this Act shall be entitled to recover the tax so paid from the person on whose behalf it is paid, or to retain an equivalent amount out of any moneys due or belonging to the said person which may be in his possession or come into his possession at any time.

(3) Nothing in this Act shall prevent either the direct assessment of the person on whose behalf or for whose benefit, any such income is receivable, or the recovery from such person of the tax payable in respect of such income.

Explanation.— For the purposes of this section, “agent” includes—

- (i) in respect of the income of a minor, lunatic or idiot, the guardian or manager who is entitled to receive, or is in receipt of, such income, on behalf of such minor, lunatic or idiot;
- (ii) in respect of income, which the Court of Wards, the Administrator General, the Official Trustee or any receiver or manager appointed by or under any order of a Court receives or is entitled to receive on behalf of, or for the benefit of, any person, such Court of Wards, Administrator General, Official Trustee, receiver or manager; and
- (iii) in respect of income which a trustee, appointed under a trust declared by a duly executed instrument in writing whether testamentary or otherwise including any Wakf deed which is valid under the Mussalman Wakf Validating Act 1913 (VI of 1913), receives or is entitled to receive on behalf, or for the benefit, of any person, such trustee or trustees.]

5. Refund.— Refund of tax where due shall be made in such manner as may be prescribed.

6. Maintenance of accounts.— Accounts regarding demand and recovery of tax shall be maintained in such manner as may be prescribed.

7. Application of Act XVII of 1967.— (1) Subject to the other provisions of this Act, the provisions of sections 13 and 14 of the Punjab Land Revenue Act 1967 (XVII of 1967) shall apply to cases under this Act.

(2) For the purposes of appeal, review or revision, an order passed under this Act shall be deemed to be an order of a Revenue Officer within the meanings of Sections 161, 162, 163 and 164 of the Punjab Land Revenue Act 1967 (XVII of 1967) ⁷¹[:]

⁶⁸Substituted for the word “assessee” by the Act *ibid*.

⁶⁹Substituted for the words “an assessee” by the Punjab Agricultural Income Tax (Amendment) Act 2024 (XV of 2024), published in the Punjab Gazette (Extraordinary), dated: 27 November 2024, pp. 1469-1472, s. 13.ss

⁷⁰Substituted for the word “assessee” by the Act *ibid*.

⁷¹Substituted by the Punjab Agricultural Income Tax (Second Amendment) Ordinance, 2001 (VIII of 2001), w.e.f. 1.7.2000, s.6; and published in the Punjab Gazette (Extraordinary), dated 4.7.2001, pages 1161-1168, which was protected and continued under the Provisional Constitutional Order, 1999 (Chief Executive's Order 1 of 1999) as amended by the Provisional

⁷²[Provided that proceedings of *suo motu* review or revision of an order in respect of any ⁷³[tax year] shall not be initiated after the expiration of two years from the end of the ⁷⁴[tax year] in which the total agricultural income of the said ⁷⁵[tax year] was first assessable.]

⁷⁶**[8. Penalty for failure to furnish statement, etc.–** (1) Where any person has, without reasonable cause, failed to furnish, within the time allowed for the purpose, the statement or, as the case may be, the return under section 4, the Collector may impose upon such person a penalty ⁷⁷[equal to:

- (a) 0.1% of the tax payable in respect of that tax year for each day of default; or
- (b) rupees one thousand for each day of default; provided that minimum penalty shall be:
 - (i) ten thousand rupees in case where the agriculture income does not exceed twelve hundred thousand rupees;
 - (ii) twenty thousand rupees in case where the agricultural income exceeds twelve hundred thousand rupees but does not exceed forty million rupees; and
 - (iii) fifty thousand rupees where the agricultural income exceeds forty million rupees.]

(2) No penalty under sub-section (1) shall be imposed on any person unless such person has been given a reasonable opportunity of being heard.]

⁷⁸**[9. Penalty for concealment of cultivated land etc.–** (1) Where in the course of any proceedings under this Act, the Collector or the appellate or revisional authority is

Constitution (Amendment) Order, 1999 (Chief Executive's Order 9 of 1999) and Article 270AA of the Constitution of the Islamic Republic of Pakistan as substituted by the Constitution (Eighteenth Amendment) Act, 2010.

⁷²Added by the Punjab Agricultural Income Tax (Second Amendment) Ordinance, 2001 (VIII of 2001), w.e.f. 1.7.2000, s.6; and published in the Punjab Gazette (Extraordinary), dated 4.7.2001, pages 1161-1168, which was protected and continued under the Provisional Constitutional Order, 1999 (Chief Executive's Order 1 of 1999) as amended by the Provisional Constitution (Amendment) Order, 1999 (Chief Executive's Order 9 of 1999) and Article 270AA of the Constitution of the Islamic Republic of Pakistan as substituted by the Constitution (Eighteenth Amendment) Act, 2010.

⁷³Substituted for the words "income year" by the Punjab Agricultural Income Tax (Amendment) Act 2024 (XV of 2024), published in the Punjab Gazette (Extraordinary), dated: 27 November 2024, pp. 1469-1472, s. 13.

⁷⁴Substituted for the words "assessment year" by the Act *ibid*.

⁷⁵Substituted for the words "income year" by the Act *ibid*.

⁷⁶Substituted by the Punjab Agricultural Income Tax (Second Amendment) Ordinance, 2001 (VIII of 2001), w.e.f. 1.7.2000, s.7; and published in the Punjab Gazette (Extraordinary), dated 4.7.2001, pages 1161-1168, which was protected and continued under the Provisional Constitutional Order, 1999 (Chief Executive's Order 1 of 1999) as amended by the Provisional Constitution (Amendment) Order, 1999 (Chief Executive's Order 9 of 1999) and Article 270AA of the Constitution of the Islamic Republic of Pakistan as substituted by the Constitution (Eighteenth Amendment) Act, 2010, which earlier substituted by the Punjab Agricultural Income Tax (Amendment) Ordinance, 2000 (I of 2000), w.e.f. 1.7.2000, s.5; and published in the Punjab Gazette (Extraordinary), dated 30.6.2000, pages 577-581, which was protected and continued under the Provisional Constitutional Order, 1999 (Chief Executive's Order 1 of 1999) as amended by the Provisional Constitution (Amendment) Order, 1999 (Chief Executive's Order 9 of 1999) and Article 270AA of the Constitution of the Islamic Republic of Pakistan as substituted by the Constitution (Eighteenth Amendment) Act, 2010.

⁷⁷Substituted for words "of rupees twenty-five for each day of default, subject to maximum of rupees one thousand" by the Punjab Agricultural Income Tax (Amendment) Act 2024 (XV of 2024), published in the Punjab Gazette (Extraordinary), dated: 27 November 2024, pp. 1469-1472, s. 9.

⁷⁸Substituted by the Punjab Agricultural Income Tax (Amendment) Ordinance, 2000 (I of 2000), w.e.f. 1.7.2000, s.6; and published in the Punjab Gazette (Extraordinary), dated 30.6.2000, pages 577-581, which was protected and continued under

satisfied that any ⁷⁹[taxpayer] has, either in the said proceedings or in any earlier proceedings relating to an assessment in respect of the same tax year, concealed his cultivated land or furnished inaccurate particulars of such cultivated land, or concealed his agricultural income or furnished inaccurate particulars of such income, he or, as the case may be, it may impose upon such ⁸¹[taxpayer] a penalty equal to the amount of tax which the said ⁸³[taxpayer] sought to evade by concealment of his cultivated land or furnishing inaccurate particulars of such cultivated land, or by concealment of his agricultural income or furnishing inaccurate particulars of such income as aforesaid.

(2) For the purposes of sub-section (1), concealment of cultivated land or the furnishing of inaccurate particulars of cultivated land, concealment of agricultural income or furnishing of inaccurate particulars of such income shall include suppression of information regarding any cultivated land liable to tax or, as the case may be, suppression of any item of receipt of agricultural income or failure to disclose agricultural income chargeable to tax under this Act or claiming any deduction for, or showing any expenditure not actually incurred.]

⁸⁵(3) No penalty under this section shall be imposed on any ⁸⁶[taxpayer] unless such ⁸⁷[taxpayer] has been given a reasonable opportunity of being heard.]

⁸⁸**[10. Default surcharge for non-payment or late payment of tax].—** (1) Where any ⁹⁰[taxpayer] is in default in making payment of any tax, the Collector may impose

the Provisional Constitutional Order, 1999 (Chief Executive's Order 1 of 1999) as amended by the Provisional Constitution (Amendment) Order, 1999 (Chief Executive's Order 9 of 1999) and Article 270AA of the Constitution of the Islamic Republic of Pakistan as substituted by the Constitution (Eighteenth Amendment) Act, 2010.

⁷⁹Substituted for the word "owner" by the Punjab Agricultural Income Tax (Second Amendment) Ordinance, 2001 (VIII of 2001), w.e.f. 1.7.2000, s.8; and published in the Punjab Gazette (Extraordinary), dated 4.7.2001, pages 1161-1168, which was protected and continued under the Provisional Constitutional Order, 1999 (Chief Executive's Order 1 of 1999) as amended by the Provisional Constitution (Amendment) Order, 1999 (Chief Executive's Order 9 of 1999) and Article 270AA of the Constitution of the Islamic Republic of Pakistan as substituted by the Constitution (Eighteenth Amendment) Act, 2010.

⁸⁰Substituted for the word "assessee" by the Punjab Agricultural Income Tax (Amendment) Act 2024 (XV of 2024), published in the Punjab Gazette (Extraordinary), dated: 27 November 2024, pp. 1469-1472, s. 13.

⁸¹Substituted for the word "owner" by the Punjab Agricultural Income Tax (Second Amendment) Ordinance, 2001 (VIII of 2001), w.e.f. 1.7.2000, s.8; and published in the Punjab Gazette (Extraordinary), dated 4.7.2001, pages 1161-1168, which was protected and continued under the Provisional Constitutional Order, 1999 (Chief Executive's Order 1 of 1999) as amended by the Provisional Constitution (Amendment) Order, 1999 (Chief Executive's Order 9 of 1999) and Article 270AA of the Constitution of the Islamic Republic of Pakistan as substituted by the Constitution (Eighteenth Amendment) Act, 2010.

⁸²Substituted for the word "assessee" by the Punjab Agricultural Income Tax (Amendment) Act 2024 (XV of 2024), published in the Punjab Gazette (Extraordinary), dated: 27 November 2024, pp. 1469-1472, s. 13.

⁸³Substituted for the word "owner" by the Punjab Agricultural Income Tax (Second Amendment) Ordinance, 2001 (VIII of 2001), w.e.f. 1.7.2000, s.8; and published in the Punjab Gazette (Extraordinary), dated 4.7.2001, pages 1161-1168, which was protected and continued under the Provisional Constitutional Order, 1999 (Chief Executive's Order 1 of 1999) as amended by the Provisional Constitution (Amendment) Order, 1999 (Chief Executive's Order 9 of 1999) and Article 270AA of the Constitution of the Islamic Republic of Pakistan as substituted by the Constitution (Eighteenth Amendment) Act, 2010.

⁸⁴Substituted for the word "assessee" by the Punjab Agricultural Income Tax (Amendment) Act 2024 (XV of 2024), published in the Punjab Gazette (Extraordinary), dated: 27 November 2024, pp. 1469-1472, s. 13.

⁸⁵Added by the Punjab Agricultural Income Tax (Second Amendment) Ordinance, 2001 (VIII of 2001), w.e.f. 1.7.2000, s.8; and published in the Punjab Gazette (Extraordinary), dated 4.7.2001, pages 1161-1168, which was protected and continued under the Provisional Constitutional Order, 1999 (Chief Executive's Order 1 of 1999) as amended by the Provisional Constitution (Amendment) Order, 1999 (Chief Executive's Order 9 of 1999) and Article 270AA of the Constitution of the Islamic Republic of Pakistan as substituted by the Constitution (Eighteenth Amendment) Act, 2010.

⁸⁶Substituted for the word "assessee" by the Punjab Agricultural Income Tax (Amendment) Act 2024 (XV of 2024), published in the Punjab Gazette (Extraordinary), dated: 27 November 2024, pp. 1469-1472, s. 13.

⁸⁷Substituted for the word "assessee" by the Act *ibid*.

⁸⁸Substituted by the Punjab Agricultural Income Tax (Second Amendment) Ordinance, 2001 (VIII of 2001), w.e.f. 1.7.2000, s.9; and published in the Punjab Gazette (Extraordinary), dated 4.7.2001, pages 1161-1168, which was protected and continued under the Provisional Constitutional Order, 1999 (Chief Executive's Order 1 of 1999) as amended by the Provisional Constitution (Amendment) Order, 1999 (Chief Executive's Order 9 of 1999) and Article 270AA of the Constitution of the Islamic Republic of Pakistan as substituted by the Constitution (Eighteenth Amendment) Act, 2010.

⁸⁹Substituted for title "Penalty for default in payment of tax" by the Punjab Agricultural Income Tax (Amendment) Act 2024 (XV of 2024), published in the Punjab Gazette (Extraordinary), dated: 27 November 2024, pp. 1469-1472, s. 10(a).

on him a ⁹¹[default surcharge] at the rate of ⁹²[ten] percent per annum of the amount of tax overdue for the period of default:

Provided that the total amount of ⁹³[default surcharge] imposed under this section shall not exceed fifty per cent of the amount of such tax.

(2) No ⁹⁴[default surcharge] under sub-section (1) shall be imposed on any ⁹⁵[taxpayer] unless such ⁹⁶[taxpayer] has been given a reasonable opportunity of being heard.]

⁹⁷[10-A. Bar of jurisdiction.— No Civil Court shall have jurisdiction in any manner relating to the assessment or collection of the tax leviable under this Act and no order passed or proceedings taken by any authority under this Act shall be called in question in any Civil Court.]

11. Rules.— ⁹⁸[(1)] The Government may frame rules to carry out the purposes of this Act.

⁹⁹[(2) Any amendment made in the rules, to the extent of rates of agricultural income tax, during a financial year, under sub-section (1), shall be laid in Provincial Assembly of the Punjab at the time of presentation of the Annual Budget for the next financial year.]

12. Repeal.— ¹⁰⁰[* * *] The Punjab Agricultural Income Tax Ordinance 1997 (XXII of 1997) is hereby repealed.

¹⁰¹[* * * * *]

⁹⁰Substituted for the word “assessee” by the Punjab Agricultural Income Tax (Amendment) Act 2024 (XV of 2024), published in the Punjab Gazette (Extraordinary), dated: 27 November 2024, pp. 1469-1472, s. 13.

⁹¹Substituted for the word “penalty” by the Punjab Agricultural Income Tax (Amendment) Act 2024 (XV of 2024), published in the Punjab Gazette (Extraordinary), dated: 27 November 2024, pp. 1469-1472, s. 10(b)(i).

⁹²Substituted for the word “five” by the Punjab Agricultural Income Tax (Amendment) Act 2024 (XV of 2024), published in the Punjab Gazette (Extraordinary), dated: 27 November 2024, pp. 1469-1472, s. 10(b)(ii).

⁹³Substituted for the word “penalty” by the Punjab Agricultural Income Tax (Amendment) Act 2024 (XV of 2024), published in the Punjab Gazette (Extraordinary), dated: 27 November 2024, pp. 1469-1472, s. 10(b)(iii).

⁹⁴Substituted for the word “penalty” by the Punjab Agricultural Income Tax (Amendment) Act 2024 (XV of 2024), published in the Punjab Gazette (Extraordinary), dated: 27 November 2024, pp. 1469-1472, s. 10(c).

⁹⁵Substituted for the word “assessee” by the Punjab Agricultural Income Tax (Amendment) Act 2024 (XV of 2024), published in the Punjab Gazette (Extraordinary), dated: 27 November 2024, pp. 1469-1472, s. 13.

⁹⁶Substituted for the word “assessee” by the Act *ibid*.

⁹⁷Inserted by the Punjab Agricultural Income Tax (Second Amendment) Ordinance, 2001 (VIII of 2001), w.e.f. 1.7.2000, s.10; and published in the Punjab Gazette (Extraordinary), dated 4.7.2001, pages 1161-1168, which was protected and continued under the Provisional Constitutional Order, 1999 (Chief Executive’s Order 1 of 1999) as amended by the Provisional Constitution (Amendment) Order, 1999 (Chief Executive’s Order 9 of 1999) and Article 270AA of the Constitution of the Islamic Republic of Pakistan as substituted by the Constitution (Eighteenth Amendment) Act, 2010.

⁹⁸The number “(1)” added by the Punjab Agricultural Income Tax (Amendment) Act 2024 (XV of 2024), published in the Punjab Gazette (Extraordinary), dated: 27 November 2024, pp. 1469-1472, s. 11.

⁹⁹Added by the Act *ibid*.

¹⁰⁰Omitted the brackets and figure “(1)” by the Punjab Agricultural Income Tax (Second Amendment) Ordinance, 2001 (VIII of 2001), w.e.f. 1.7.2000, s.11; and published in the Punjab Gazette (Extraordinary), dated 4.7.2001, pages 1161-1168, which was protected and continued under the Provisional Constitutional Order, 1999 (Chief Executive’s Order 1 of 1999) as amended by the Provisional Constitution (Amendment) Order, 1999 (Chief Executive’s Order 9 of 1999) and Article 270AA of the Constitution of the Islamic Republic of Pakistan as substituted by the Constitution (Eighteenth Amendment) Act, 2010.

¹⁰¹Deleted by the Punjab Agricultural Income Tax (Second Amendment) Ordinance, 2001 (VIII of 2001), w.e.f. 1.7.2000, s.11; and published in the Punjab Gazette (Extraordinary), dated 4.7.2001, pages 1161-1168, which was protected and continued under the Provisional Constitutional Order, 1999 (Chief Executive’s Order 1 of 1999) as amended by the Provisional Constitution

¹⁰²[¹⁰³[* * * * * * * * * * * * * *]]

¹⁰⁴[¹⁰⁵[* * * * * * * * * * * * * *]]

(Amendment) Order, 1999 (Chief Executive's Order 9 of 1999) and Article 270AA of the Constitution of the Islamic Republic of Pakistan as substituted by the Constitution (Eighteenth Amendment) Act, 2010.

¹⁰²Substituted by the Punjab Finance Act 2019 (XV of 2019), published in the Punjab Gazette (Extraordinary), dated: 28 June 2019, pp. 4105-4114, s. 5; It was earlier substituted by the Punjab Agricultural Income Tax (Amendment) Ordinance, 2002 (XXXVIII of 2002), w.e.f.1.7.2002, s.5; and published in the Punjab Gazette (Extraordinary), dated 8.7.2002, page. which was protected and continued under the Provisional Constitutional Order, 1999 (Chief Executive's Order 1 of 1999) as amended by the Provisional Constitution (Amendment) Order, 1999 (Chief Executive's Order 9 of 1999) and Article 270AA of the Constitution of the Islamic Republic of Pakistan as substituted by the Constitution (Eighteenth Amendment) Act, 2010.

¹⁰³Omitted by the Punjab Agricultural Income Tax (Amendment) Act 2024 (XV of 2024), published in the Punjab Gazette (Extraordinary), dated: 27 November 2024, pp. 1469-1472, s. 12.

¹⁰⁴Substituted by the Punjab Finance Act 2019 (XV of 2019), published in the Punjab Gazette (Extraordinary), dated: 28 June 2019, pp. 4105-4114, s. 5; It was earlier substituted by the Punjab Agricultural Income Tax (Amendment) Ordinance, 2000 (I of 2000), w.e.f. 1.7.2000, s.7; and published in the Punjab Gazette (Extraordinary), dated 30.6.2000, pages 577-581, which was protected and continued under the Provisional Constitutional Order, 1999 (Chief Executive's Order 1 of 1999) as amended by the Provisional Constitution (Amendment) Order, 1999 (Chief Executive's Order 9 of 1999) and Article 270AA of the Constitution of the Islamic Republic of Pakistan as substituted by the Constitution (Eighteenth Amendment) Act, 2010.

¹⁰⁵Omitted by the Punjab Agricultural Income Tax (Amendment) Act 2024 (XV of 2024), published in the Punjab Gazette (Extraordinary), dated: 27 November 2024, pp. 1469-1472, s. 12.